

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory West Virginia

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:37:10 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)
- The Lead Agency does not appropriately allow temporary changes in work, training, or education status, as required by 98.21(a)(1)(ii)(A), 98.21(a)(1)(ii)(B), and 98.21(a)(1)(ii)(C). (Plan Question 2.5.2b)
- The Lead Agency discontinues assistance for excessive unexplained absences without making multiple attempts to contact the family and provider, as required by 98.21(a)(5)(i)(A). (Plan Question 2.5.3cii)
- The Lead Agency does not appropriately limit what families must report during the 12-month eligibility period to allowable information, as required by 98.21(h)(2). (Plan Question 2.5.4)

Overall Target Completion Date: 06/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review policy manual language to identify changes, modifications, and clarifications needed.	04/30/2025
2	Explore adding a ☐ suspension ☐ category in the eligibility system in addition to open and closed to understand the process and implications of making system change.	04/30/2025
3	Draft policy language that explicitly states that a family's case is not closed during their 12-month eligibility period, but rather, it is suspended, at the family's request.	05/30/2025
4	Share draft policy language with Regional Office for guidance and feedback.	06/30/2025
5	The Lead Agency does not appropriately allow temporary changes in work, training, or education status, as required by 98.21(a)(1)(ii)(A), 98.21(a)(1)(ii)(B), and 98.21(a)(1)(ii)(C). (Plan Question 2.5.2b)	06/30/2025
6	Review policy manual language to identify changes, modifications, and clarifications needed.	04/30/2025

7	Draft policy language	05/30/2025
8	Draft and disseminate communication to eligibility workers	06/30/2025
9	The Lead Agency discontinues assistance for excessive unexplained absences without making multiple attempts to contact the family and provider, as required by 98.21(a)(5)(i)(A). (Plan Question 2.5.3cii)	06/30/2025
10	Revise policy by clarifying policy by defining ☐ multiple attempts to contact the family. ☐	04/30/2025
11	Share draft policy language with Regional Office for guidance and feedback	05/30/2025
12	Draft and disseminate communication to eligibility workers with clarification about ☐ multiple attempts ☐ and implementation instructions.	06/30/2025
13	The Lead Agency does not appropriately limit what families must report during the 12- month eligibility period to allowable information, as required by 98.21(h)(2). (Plan Question 2.5.4)	06/30/2025
14	Review examples of how other Lead Agencies address families reporting change in family size (parent re-enters the home and is working ☐ income above 85%?)	04/30/2025
15	Share draft policy language with Regional Office for guidance and feedback	05/30/2025
16	Draft and disseminate communication to eligibility workers with clarification about ☐ multiple attempts ☐ and implementation instructions.	06/30/2025

LEAD AGENCY RESPONSIBILITIES: PROGRAM ADMINISTRATION, PLAN DEVELOPMENT, AND PROGRAM/FUNDING COORDINATION

Reason(s) for non-compliance:

- The Lead Agency did not demonstrate how they make quarterly expenditure (ACF-696) reports publicly available, as required by 98.70(d). (Plan Question 7.2.1a)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency will begin posting the quarterly ACF 696 to the early care and education website.	01/31/2025

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not prohibit increases to co-payments within the 12-month eligibility period prior to graduated phase-out period, as required by 98.21(a)(3). (Plan Question 2.5.4)

Overall Target Completion Date: 07/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Meet with Optum to discuss scope of changes to prevent co-pay increases during the 12 month eligibility period.	01/31/2025
2	Optum to implement changes	05/30/2025
3	System revisions Tested	06/30/2025
4	System revisions deployed.	07/31/2025

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through April 30, 2026.
- The Lead Agency does not pay for reasonable mandatory registration fees that the

provider charges to private-paying parents, as required by 98.45(m)(4). (Plan Question 4.4.2b)

Overall Target Completion Date: 07/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a)	07/31/2026
2	Meet with Optum to discuss scope of changes to pay prospectively. Meet with finance to discuss funding.	06/30/2025
3	Optum to implement changes.	02/27/2026
4	System revisions Tested.	05/29/2026
5	Child care providers and CCR&R staff trained on prospective payment processes.	06/30/2026
6	System revisions deployed.	07/20/2026
7	The Lead Agency does not pay for reasonable mandatory registration fees that the provider charges to private-paying parents, as required by 98.45(m)(4). (Plan Question 4.4.2b)	07/31/2026
8	Meet with Optum to discuss scope of changes to pay for reasonable registration fees for families. Meet with finance to discuss funding.	06/30/2025
9	Optum to implement changes.	02/27/2026
10	System revisions tested.	05/29/2026
11	System revisions deployed.	07/20/2026

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency did not consult with the State Advisory Council or similar coordinating body, local child care program administrators, local child care resource and referral agencies, or organizations representing child care caregivers, teachers, and directors prior to conducting a market rate survey or alternative methodology, as required by 98.45(e)(1). (Plan Questions 4.2.1ci, 4.2.1cii, 4.2.1ciii, and 4.2.1civ)

Overall Target Completion Date: 10/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	Presented current Market Rate report information at Child Care Resource and Referral Directors Meeting.	12/12/2024
2	Present current Market Rate report information at the Early Childhood Advisory Council Meeting	01/31/2025
3	Present Market Rate information at meetings prior to conducting the survey at future WV Early Childhood Advisory Council meetings, child care advocacy groups, child care administrators/owners/directors, child care resource and referral agencies via a series of informational meetings.	10/30/2026

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through March 31, 2026.

Overall Target Completion Date: 06/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	Conduct a needs assessment to identify gaps in services via stakeholder engagement that involves community partners (local organizations,	06/30/2025

	child care resource and referral agencies, disability advocacy groups, WV Birth to Three, Early Childhood Advisory Council, parents, etc.)	
2	Utilize data from state child care resource and referral agencies, demographic information and provider surveys to understand need for additional services	06/30/2025
3	Develop policy and eligibility criteria to establish clear guidelines and prioritize specific populations	09/30/2025
4	Consult with WV DoHS BFA Finance for funding allocation and set funding priorities	09/30/2025
5	Develop a quality assurance and monitoring process to include quality standards, regular monitoring and evaluation through site visits, data collection, family feedback	09/30/2025
6	Develop a competitive application process with clear requirements including program details, quality standards and fiscal information.	06/30/2026
7	Plan, develop and implement training to providers on best practices for addressing specified populations.	06/30/2026

EQUAL ACCESS:SUPPLY BUILDING STRATEGIES

Reason(s) for non-compliance:

- The Lead Agency does not adequately describe how they identify gaps in the supply of child care for children with disabilities and in the supply of child care during non-traditional hours, as required by 98.16(x). (Plan Questions 4.5.4c and 4.5.4d)

Overall Target Completion Date: 08/29/2025

Action Step Number	Action Step Description	Target Completion Date
1	Collect data from state licensing databases, provider surveys, parent surveys and community needs assessments to identify demands for identified child care services and identify specific	06/30/2025

	non-traditional hours needed by families. Analyze data to understand the current and needed number of providers offering care during non-traditional hours and the number of these that are of higher quality.	
2	Analyze data by specific needs to include types of disabilities present in the community, provider capacity to support specific needs.	07/31/2025
3	Assess the availability of specialised training for staff working with children with disabilities.	08/15/2025

HEALTH AND SAFETY:FIRE STANDARDS

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with fire standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aai and 5.5.1bii)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
2	Revised differential checklists for child care centers, out of school time child care centers, family child care homes, family child care facilities, and family child care informal/relative to include fire standard requirements.	09/30/2024
3	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on compliance with fire standards.	03/31/2025

HEALTH AND SAFETY:ADMINISTRATION OF MEDICATION

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the administration of medication consistent with standards for parental consent for licensed family child care homes, as required by 98.41(a)(1)(iii). (Plan Questions 5.3.3aii and 5.3.3bii)
- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on the administration of medication consistent with standards for parental consent, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for administration of medication. Additionally, the Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with pre-service or orientation training requirements for administration of medication, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for the administration of medication consistent with standards for parental consent for licensed family child care homes, as required by 98.41(a)(1)(iii). (Plan Questions 5.3.3aii and 5.3.3bii)	08/31/2028
2	Developed Letter of Agreement for Informal/Relative Home providers requiring written permission from parents to administer medication to children. Note: Family child care homes (78CSR19) have parental consent standards for administration of medication. Family Child Care Informal/Relative homes (78CSR20) do not have a standard for medication administration parental consent requirements.	09/27/2024
3	Propose rule change within WV DoHS BFA chain of command and Legal team.	08/31/2027
4	Provide a public forum for proposed regulation change.	05/31/2027

5	Provide a public comment period for proposed regulation change,	05/31/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on the administration of medication consistent with standards for parental consent, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
10	Developed Letter of Agreement for Informal/Relative Home providers requiring to complete pre-service training within three months on the administration of medication. Note: Family child care homes (78CSR19) have requirements for the completion of preservice training within three months on the administration of medication. Family Child Care Informal/Relative homes (78CSR20) do not have a standard for medication administration parental consent requirements.	09/30/2024
11	Propose rule change within WV DoHS BFA chain of command and Legal team.	04/30/2027
12	Provide a public forum for proposed regulation change.	05/28/2027
13	Provide a public comment period for proposed regulation change.	05/28/2027
14	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
15	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027

16	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
17	The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for administration of medication. Additionally, the Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with pre-service or orientation training requirements for administration of medication, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
18	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
19	Revised differential checklists for child care centers, out of school time centers, family child care homes, family child care facilities, and family child care informal/relative to include requirements for medication administration.	09/30/2024
20	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted for compliance with medication administration.	03/31/2025

HEALTH AND SAFETY:BUILDING AND PHYSICAL PREMISES SAFETY

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care for compliance with pre-service or orientation training requirements related to building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
2	Develop Letter of Agreement for family child care facility providers requiring Pre-Service training in building and physical premises safety, identification of and protection from hazards, bodies of water, and vehicular traffic be completed within three months. Note: Family child care homes (78CSR19) has a standard requiring pre-service training within three months on building and physical premises safety, identification of and protection from hazards, bodies of water, and vehicular traffic. Family Child Care Facilities (78CSR18) does not have a standard for completion of pre-service training in building and physical premises safety, identification of and protection from hazards, bodies of water, and vehicular traffic be completed within three months.	09/30/2024
3	Propose rule change within WV DoHS BFA chain of command and Legal team.	04/30/2027
4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028

9	The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care for compliance with pre-service or orientation training requirements related to building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
10	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
11	Revised differential checklists for child care centers, out of school time centers, family child care homes, family child care facilities, and family child care informal/relative to include identification of and protection from hazards, bodies of water, and vehicular traffic.	09/30/2024
12	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted for identification of and protection from hazards, bodies of water, and vehicular traffic.	03/31/2025

HEALTH AND SAFETY:CHILD DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months, on child development, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with pre-service or orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
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1	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months, on child development, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
2	Developed Letter of Agreement for family child care facility providers requiring Pre-Service training in child development be completed within three months. Note: Family child care homes (78CSR19) have a standard to complete pre-service training within three months in Child Development. Family Child Care Facilities (78CSR19) does not have a standard to complete pre-service training within three months on child development.	09/30/2024
3	Propose rule change within WV DoHS BFA chain of command and Legal team.	04/30/2027
4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with pre-service or orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
10	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
11	Revised differential checklists for child care centers, out of school time centers, family child	09/30/2024

	care homes, family child care facilities, and family child care informal/relative to include ratios and group sizes.	
12	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted for compliance with ratios and group sizes.	03/31/2025

HEALTH AND SAFETY:INSPECTORS

Reason(s) for non-compliance:

- The Lead Agency does not ensure that licensing inspectors have received training on health and safety requirements appropriate to provider setting and the ages of children served, as required by 98.42(b)(1). (Plan Question 5.5.5)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Require all child care licensing and regulatory staff to take and complete the preservice training currently taken by child care providers.	08/29/2025
2	Conduct a needs analysis to identify training gaps, set clear learning objectives, determine appropriate training methods, develop training materials.	09/30/2025
3	Schedule training sessions.	10/31/2025
4	Implement training sessions.	11/21/2025
5	Evaluate and revise training.	12/31/2025
6	Revise regulation specialists' Performance Evaluations (Universal Competencies) to require training.	12/31/2025

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers or licensed family child care homes, as required by 98.41(a)(1)(vii). (Plan Question 5.3.7iv)
- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on emergency preparedness and response planning, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for emergency preparedness and response planning and related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers or licensed family child care homes, as required by 98.41(a)(1)(vii). (Plan Question 5.3.7iv)	03/31/2022
2	Revised Emergency Plan to include Continuity of Operations for all provider types	03/31/2022
3	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on emergency preparedness and response planning, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
4	Develop Letter of Agreement for Family Child Care Facility providers requiring Pre-Service training in emergency preparedness and response planning be completed within three months of operation/employment. Note: Family child care homes (78CSR19) has a standard to complete pre-service training within three months in emergency preparedness and response planning. Family child care facilities	09/30/2024

	(78CSR18) does not have a standard for completing Pre-Service training within three months on emergency preparedness and response planning.	
5	Propose rule change within WV DoHS BFA chain of command and Legal team.	04/30/2027
6	Provide a public forum for proposed regulation change.	05/28/2027
7	Provide a public comment period for proposed regulation change.	05/28/2027
8	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
9	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
10	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
11	The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for emergency preparedness and response planning and related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
12	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
13	Revise differential checklists for child care centers, out of school times, family child care homes, family child care facilities, and family child care informal/relative to include pre-service training in emergency preparedness and response planning.	01/31/2025
14	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on compliance with emergency preparedness and response planning.	03/31/2025

HEALTH AND SAFETY:HANDLING AND STORAGE OF HAZARDOUS MATERIALS AND DISPOSAL OF BIOCONTAMINANTS

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care homes for compliance with pre-service or orientation training requirements related to handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
2	Developed Letter of Agreement for Family Child Care Facility providers requiring pre-service training be completed within three months on handling and storage of hazardous materials and disposal of biocontaminants. Note: Family child care homes (78CSR19) have a standard to complete pre-service training within three months on handling and storage of hazardous materials and disposal of biocontaminants. Family Child Care Facilities (78-18) does not have a standard for requiring pre-service training within three months on handling and storage of hazardous materials and disposal of biocontaminants.	09/30/2024

3	Propose rule change within WV DoHS BFA chain of command and Legal team.	04/30/2027
4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care homes for compliance with pre-service or orientation training requirements related to handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
10	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections	11/29/2019
11	Revise differential checklists for child care centers, out of school time centers, family child care homes, family child care facilities, and family child care informal/relative homes to include pre-service training on handling and storage of hazardous materials and disposal of biocontaminants.	01/31/2025
12	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using the differential checklist is being conducted for compliance with handling and storage of hazardous materials and disposal of biocontaminants.	03/31/2025

HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care for compliance with ongoing training on health and safety standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1a ii and 5.5.1b ii)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
2	Revised differential checklists for child care centers, out of school time centers, family child care homes, family child care facilities, and family child care informal/relative to include ongoing training regulations.	09/30/2024
3	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted in compliance with ongoing training.	03/31/2025

HEALTH AND SAFETY: IDENTIFICATION AND REPORTING OF CHILD ABUSE

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the identification of child abuse and neglect for licensed family child care homes, as required by 98.41(a)(1)(xi). (Plan Question 5.3.11a ii)
- The Lead Agency does not require pre-service or orientation training on child abuse and neglect recognition and reporting for licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1k)
- The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for identification and reporting of child abuse and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1b ii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for the identification of child abuse and neglect for licensed family child care homes, as required by 98.41(a)(1)(xi). (Plan Question 5.3.11aii)	08/31/2028
2	Developed a Letter of Agreement for family child care facility, family child care home, and informal/relative home providers requiring completion of Making A Difference: Mandate to Report, Responsibility to Prevent Child Abuse and Neglect training within three months of operation/employment.	09/30/2024
3	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain legislative approval to add a standard 78CSR18, 78CSR19, and 78CSR20, requiring child abuse and neglect training be completed within three months of operation/employment.	04/30/2027
4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require pre-service or orientation training on child abuse and neglect recognition and reporting for licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1k)	08/31/2028
10	Revise pre-service training to include information of child abuse and neglect recognition and reporting for licensed family child care homes. Information shall be updated to include reporting maltreatment and procedures to be followed if	07/31/2025

	suspected sexual, physical, emotional abuse is identified.	
11	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain legislative approval to require pre-service or orientation training on child abuse and neglect recognition and reporting for licensed family child care home	04/30/2027
12	Provide a public forum for proposed regulation change.	05/28/2027
13	Provide a public comment period for proposed regulation change.	05/28/2027
14	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
15	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
16	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
17	The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for identification and reporting of child abuse and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1bii)	03/31/2025
18	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
19	Revise differential checklists for child care centers, out of school time centers, family child care homes, family child care facilities, and family child care informal/relative to include pre-service training in child abuse and neglect recognition and reporting.	01/31/2025
20	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on annual basis using differential checklist is being conducted on compliance with pre-service training in child abuse and neglect recognition and reporting.	03/31/2025

HEALTH AND SAFETY:PEDIATRIC FIRST AID AND PEDIATRIC CPR

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for pediatric first aid or pediatric CPR for all staff for licensed family child care homes, as required by 98.41(a)(1)(x). (Plan Questions 5.3.10aii and 5.3.10bii)
- The Lead Agency does not require pre-service or orientation training on pediatric first aid and pediatric CPR, for licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)
- The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for pediatric first aid and pediatric CPR and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for pediatric first aid or pediatric CPR for all staff for licensed family child care homes, as required by 98.41(a)(1)(x). (Plan Questions 5.3.10aii and 5.3.10bii).	08/31/2028
2	Developed a Letter of Agreement for family child care facility, providers requiring completion of pediatric CPR and pediatric First Aid at the time of approval to operate/employment. Note: Family child care homes (78CSR19) has a standard requiring pediatric first aid and pediatric CPR. Family child care facility (78CSR18) does not have a standard for medication administration parental consent requirements.	09/30/2024
3	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain legislative approval to require pre-service or orientation training on child abuse and neglect recognition and reporting for licensed family child care homes.	04/30/2027

4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require pre-service or orientation training on pediatric first aid and pediatric CPR, for licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)	07/31/2025
10	Pre-service training is being revised to include information on pediatric first aid and pediatric CPR for licensed family child care homes. Information shall be updated to include all federal requirements. Hyper-links will be provided to Child Care Resource and Referral agencies to obtain information on agencies that provide on-site pediatric first aid and pediatric CPR to all licensed provider types.	07/31/2025
11	The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for pediatric first aid and pediatric CPR and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1bii)	03/31/2025
12	Revise Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
13	Revise family child care home differential checklists to include pediatric first aid and pediatric CPR.	01/31/2025
14	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on	03/31/2025

	compliance with pediatric first aid and pediatric CPR.	
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HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care providers, and out-of-school programs, as required by 98.33(a)(4)(ii). (Plan Question 5.5.4a). Please note the Lead Agency has an approved waiver for portions of this requirement through March 31, 2026.
- The Lead Agency monitoring and inspection reports do not contain all the required elements, specifically corrective action taken by the State and child care provider, as required by 98.33(a)(4). (Plan Question 5.5.4b)
- The Lead Agency does not have a process for correcting inaccuracies in the monitoring and inspection reports, as required by 98.33(a)(4). (Plan Question 5.5.4e)

Overall Target Completion Date: 03/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care providers, and out-of-school programs, as required by 98.33(a)(4)(ii). (Plan Question 5.5.4a)	01/31/2025
2	Develop Change Request for Optum, vendor for People's Access To Help (PATH) data system to develop systems that will meet federal requirements.	06/28/2024
3	Consult with Optum to develop a report with required fields for the revised platform being designed to meet federal requirements.	01/31/2025
4	Consult with WV DoHS Office of Technology regarding the changes required for the current platform and what is required to meet federal requirements	01/31/2025

5	The Lead Agency monitoring and inspection reports do not contain all the required elements, specifically corrective action taken by the State and child care provider, as required by 98.33(a)(4). (Plan Question 5.5.4b)	03/31/2026
6	Meet with WV Department of Technology to determine if interim/permanent data fix can be achieved without Optum developing a new system in PATH to meet federal requirements.	11/29/2024
7	Continue meeting with WV Department of Technology until permanent data fix is achieved.	03/31/2026
8	Roll out of updated Child Care Locator which includes full monitoring and inspection reports for all licensed and regulated programs.	03/31/2026
9	The Lead Agency does not have a process for correcting inaccuracies in the monitoring and inspection reports, as required by 98.33(a)(4). (Plan Question 5.5.4e)	04/30/2025
10	Convening meeting with WV Office of Technology and Optum to discuss and develop a process for correcting inaccuracies.	04/30/2025

HEALTH AND SAFETY: RATIOS AND GROUP SIZE FOR CCDF PROVIDERS

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with group size and child-staff ratios, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
2	Revised differential checklists for child care centers, out of school time centers, family child	09/30/2024

	care homes, family child care facilities, and family child care informal/relative to include ratios and group sizes.	
3	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted for compliance with ratios and group sizes..	03/31/2025

HEALTH AND SAFETY:PRECAUTIONS IN TRANSPORTING CHILDREN

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on precautions in transporting children, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers and family child care providers for compliance with pre-service or orientation training requirements related to precautions in transporting children, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on precautions in transporting children, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
2	Develop Letter of Agreement for Family Child Care Facility providers requiring Pre-Service training on precautions in transporting children be completed within three months. Note: Family child care homes (78CSR19) has a standard requiring providers to complete pre-service training within three months on precautions in transporting children. Family Child Care Facilities (78CSR18) does not have a standard for completing pre-service training within three months of operation/employment on	09/30/2024

	precautions in transporting children	
3	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain legislative approval to require pre-service or orientation training on precautions in transporting children for licensed family child care homes	04/30/2027
4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require an annual unannounced inspection for licensed centers and family child care providers for compliance with pre-service or orientation training requirements related to precautions in transporting children, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
10	Revise Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
11	Revise family child care facility differential checklists to include pre-service training on precautions in transporting children.	01/31/2025
12	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on compliance with precautions in transporting children.	03/31/2025

COMPREHENSIVE BACKGROUND CHECK:5 YEAR RENEWAL

Reason(s) for non-compliance:

- The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review 78CSR1, 78CSR18, 78CSR19, 78CSR20, 78CSR21 to determine if language revision is needed.	12/31/2024
2	Meet with criminal and sex offender registry vendor WV DoHS OIG WV CARES staff to explore the current process for background check process and results to determine next steps.	03/31/2025
3	Revise Child Care Policy 2.8 to clarify requirement for comprehensive background checks at Rap Back expiration every 5 years.	03/31/2025
4	Submit revised Child Care Policy for review/approval to ECE Director	07/15/2025
5	Review Child Care Policy 2.8 at Unit Meetings to clarify definition to staff.	07/31/2025
6	Revise Letter of Agreement for child care centers, out of school time centers, family child care facilities, family child care homes, and informal/relative homes to require comprehensive background checks at Rap Back (Record of Arrest and Prosecution Background) expiration every 5 years.	08/29/2025
7	Present background check session at 2025 All State Directors Meeting with any updated Letter of Agreement for review/signature.	10/31/2025

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on prevention and control of infectious diseases (including immunizations), as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for the prevention and control of infectious diseases (including immunizations) and related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on prevention and control of infectious diseases (including immunizations), as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
2	Develop Letter of Agreement for Family Child Care Facility providers requiring Pre-Service training be completed within three months of operation/employment on prevention and control of infectious diseases (including immunizations). Note: Family child care homes (78CSR19) has a standard requiring providers to complete pre-service training within three months on prevention and control of infectious diseases (including immunizations). Family Child Care Facilities (78CSR18) does not have a standard for pre-service training to be completed within three months on prevention and control of infectious diseases (including immunizations).	09/30/2024
3	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain legislative approval to require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed family child care homes	04/30/2027

4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for the prevention and control of infectious diseases (including immunizations) and related pre- service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
10	Revise Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
11	Revise differential checklists for child care centers, out of school time centers, family child care homes, family child care facilities, and family child care informal/relative homes to include pre-service training on prevention and control of infectious diseases.	01/31/2025
12	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on compliance with prevention and control of infectious diseases.	03/31/2025

HEALTH AND SAFETY:PREVENTION AND RESPONSE TO EMERGENCIES FROM FOOD AND ALLERGIC REACTIONS

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on the prevention and response to emergencies from food and allergic reaction, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for the prevention of and response to emergencies due to food and allergic reactions. Additionally, the lead agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with pre-service or orientation training requirements related to the prevention of and response to emergencies due to food and allergic reactions, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on the prevention and response to emergencies from food and allergic reaction, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
2	Developed Letter of Agreement for Family Child Care Facility providers requiring Pre-Service training within three months of operation/employment on prevention and response to emergencies from food and allergic reaction. Note: Family child care homes (78CSR19) has a standard requiring providers to complete pre-service training within three months on prevention and response to emergencies from food and allergic reaction. Family Child Care Facilities (78CSR18) does not have a standard for completing pre-service training within three months on the prevention and response to emergencies from food and allergic reaction.	09/30/2024
3	Propose rule change within WV DoHS BFA chain of command and Legal team.	04/30/2027
4	Provide a public forum for proposed regulation change.	05/28/2027

5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require an annual unannounced inspection for licensed family child care providers for compliance with a standard for the prevention of and response to emergencies due to food and allergic reactions. Additionally, the lead agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with pre-service or orientation training requirements related to the prevention of and response to emergencies due to food and allergic reactions, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1a ii and 5.5.1b ii)	03/31/2025
10	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections	11/29/2019
11	Revise differential checklists for child care centers, out of school time centers, family child care facilities, family child care homes, and family child care informal/relative homes to include pre-service training on prevention of and response to emergencies due to food and allergic reactions.	01/31/2025
12	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on compliance with prevention of and response to emergencies due to food and allergic reactions.	03/31/2025

HEALTH AND SAFETY: PREVENTION OF SHAKEN BABY SYNDROME, ABUSIVE HEAD TRAUMA, AND CHILD MALTREATMENT

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on prevention of child maltreatment for licensed centers or licensed family child care homes and does not require pre-service or orientation training within three months on the prevention of shaken baby syndrome and abusive head trauma for licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1f)
- The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with pre-service or orientation training requirements related to child maltreatment. Additionally, the Lead Agency does not require an annual unannounced inspection for licensed family child care homes for compliance with pre-service or orientation training requirements related to the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require pre-service or orientation training on prevention of child maltreatment for licensed centers or licensed family child care homes and does not require pre-service or orientation training within three months on the prevention of shaken baby syndrome and abusive head trauma for licensed family child care homes, as required by 98.44(b)(1)(i). (Plan Question 5.4.1f)	08/31/2028
2	Obtained legislative approval to revise Pre-Service training definition for child care centers (78CSR1) and family child care homes (78CSR19) to include module titles for shaken baby syndrome, abusive head trauma, and child maltreatment.	04/28/2023
3	Developed a Letter of Agreement for family child care facility providers requiring completion of pre-service training within three months on shaken baby syndrome and abusive head trauma. Note: Family child care homes (78CSR19) require pre-service training within three months on shaken baby syndrome and abusive head trauma. Family child care facilities (78CSR18) does not have a standard requiring pre-service training	09/30/2024

	within three months on shaken baby syndrome and abusive head trauma.	
4	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain legislative approval to revise Pre-Service training to be completed within three months to 78CSR18 on shaken baby syndrome and abusive head trauma.	04/30/2027
5	Provide a public forum for proposed regulation change.	05/28/2027
6	Provide a public comment period for proposed regulation change.	05/28/2027
7	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
8	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
9	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
10	The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with pre-service or orientation training requirements related to child maltreatment. Additionally, the Lead Agency does not require an annual unannounced inspection for licensed family child care homes for compliance with pre-service or orientation training requirements related to the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)	03/31/2025
11	Revise Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
12	Revise differential checklists for child care centers, out of school time centers, family child care facilities, family child care homes, and family child care informal/relative homes to include pre-service training on the prevention of shaken baby syndrome and abusive head trauma.	01/31/2025

13	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on compliance with the prevention of shaken baby syndrome and abusive head trauma.	03/31/2025
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HEALTH AND SAFETY:SUDDEN INFANT DEATH SYNDROME AND SAFE SLEEP

Reason(s) for non-compliance:

- The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on sudden infant death syndrome and safe sleep practices, as required by 98.44(b). (Plan Question 5.4.1m)
- The Lead Agency does not require an annual unannounced inspection for licensed family child care homes for compliance with pre-service or orientation training requirements related to sudden infant death syndrome and safe sleep practices, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1bii)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require all staff in licensed family child care homes to complete pre-service or orientation training within three months on sudden infant death syndrome and safe sleep practices, as required by 98.44(b). (Plan Question 5.4.1m)	08/31/2028
2	Develop a Letter of Agreement for family child care facilities to complete pre-service training within three months on sudden infant death syndrome and safe sleep practices. Note: Family child care homes (78CSR19) has a requirement that pre-service training be completed within three months on sudden infant death syndrome and safe sleep practices. Family child facilities (78CSR19) does not have a standard for completion of pre-service training within three months	09/30/2024

3	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain legislative approval to revise for family child care facilities to complete pre-service training within three months on sudden infant death syndrome and safe sleep practices.	04/30/2027
4	Provide a public forum for proposed regulation change.	05/28/2027
5	Provide a public comment period for proposed regulation change.	05/28/2027
6	Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period.	06/30/2027
7	File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027
8	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
9	The Lead Agency does not require an annual unannounced inspection for licensed family child care homes for compliance with pre-service or orientation training requirements related to sudden infant death syndrome and safe sleep practices, as required by 98.42(b)(2)(i)(B). (Plan Question 5.5.1bii)	03/31/2025
10	Revised Child Care Policy 2.8 adding requirement to conduct annual unannounced inspections.	11/29/2019
11	Revise differential checklists for child family child care homes to include pre-service training on sudden infant death syndrome and safe sleep practices.	01/31/2025
12	Review Child Care Policy 2.8 at Unit Meetings to ensure monitoring on an annual basis using differential checklist is being conducted on compliance with pre-service training completion within three months on sudden infant death syndrome and safe sleep practices.	03/31/2025

COMPREHENSIVE BACKGROUND CHECK:NATIONAL NAME-BASED

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members), as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3a)
- The Lead Agency does not require and conduct NCIC NSOR name-based checks for all individuals age 18 or older who reside in a family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require and conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members), as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3a) The Lead Agency does not require and conduct NCIC NSOR name-based checks for all individuals age 18 or older who reside in a family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c)	10/31/2025
2	Explore how other states conduct background checks Consult with Legal Develop policies/procedures on Plan of Action	06/30/2025
3	Approvals from Leadership Update Background Check Guide	09/30/2025
4	Present information at 2025 All State Directors Meeting and Family Child Care Conferences	10/31/2025

COMPREHENSIVE BACKGROUND CHECK:BACKGROUND CHECK PROCESSES

Reason(s) for non-compliance:

- The Lead Agency or other state agency is not the entity conducting or making eligibility determinations for interstate background checks and does not ensure the privacy of the interstate background check results, as required by 98.43(a)(1)(i) and 98.43(e)(2). (Plan Question 5.7.10)
- The Lead Agency background check appeals process does not attempt to verify the accuracy of the information challenged by the child care staff member, get completed in a timely manner, include a response to the individual with a written notice of the decisions, or coordinate with other agencies when conducting background checks, as required by 98.43(e)(3)(iii). (Plan Questions 5.7.11iii, 5.7.11iv, 5.7.11v, and 5.7.11vi)
- The Lead Agency does not ensure background checks are completed within 45 days of the request, as required by 98.43(e)(1). (Plan Question 5.7.13a)
- The Lead Agency does not ensure that child care staff that reside in a different State receive a comprehensive background check, as required by 98.43(a)(1) and 98.43(e)(1). (Plan Question 5.7.13b)
- The Lead Agency does not ensure that background check fees do not exceed the actual costs for the processing and administration, as required by 98.43(f). (Plan Question 5.7.16)
- The Lead Agency does not conduct background checks when a provider is separated from employment for more than 180 consecutive days, as required by 98.43(d)(3)(iii). (Plan Question 5.7.17)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency or other state agency is not the entity conducting or making eligibility determinations for interstate background checks and does not ensure the privacy of the interstate background check results, as required by 98.43(a)(1)(i) and 98.43(e)(2). (Plan Question 5.7.10)	08/31/2028
2	Explore how other states are making eligibility determinations for interstate background checks and ensuring privacy.	02/28/2025
3	Consult with DoHS Legal Dept to determine steps needed to meet this requirement.	03/31/2025
4	Develop policies/procedures on plan of action	06/30/2025

5	Seek approval from WV DoHS BFA Leadership for proposed changes to policies, procedures and plan of action	08/29/2025
6	Update background check guide	08/29/2025
7	Present revisions at 2025 All State Directors Meeting and Family Child Care Conferences The Lead Agency background check appeals process does not attempt to verify the accuracy of the information challenged by the child care staff member, get completed in a timely manner, include a response to the individual with a written notice of the decisions, or coordinate with other agencies when conducting background checks, as required by 98.43(e)(3)(iii). (Plan Questions 5.7.11iii, 5.7.11iv, 5.7.11v, and 5.7.11vi)	10/31/2025
8	Consult with WV CARES to discuss appeals process, timelines, and written notice information. Consult with DoHS Legal Department	02/28/2025
9	Develop policies/processes on Plan of Action including review of regulations to determine needed revisions. Obtain approvals from Leadership	09/30/2025
10	Present information at 2025 All State Director Meeting and All Family Child Care Conferences	10/31/2025
11	The Lead Agency does not ensure background checks are completed within 45 days of the request, as required by 98.43(e)(1). (Plan Question 5.7.13a)	03/31/2025
12	Consult with WV CARES to determine Code requirements for completing background checks within the 45 days as required. Work with WV CARES on a system to ensure WV DoHS BFA ECE is notified that the 45 days as required is met.	03/31/2025
13	The Lead Agency does not ensure that child care staff that reside in a different State receive a comprehensive background check, as required by 98.43(a)(1) and 98.43(e)(1). (Plan Question 5.7.13b)	10/31/2025

14	Explore how other states ensure interstate background checks are conducted. Consult with Legal Develop policies/procedures on Plan of Action	06/30/2025
15	Approvals from Leadership Update background check guide	08/29/2025
16	Present at 2025 All State Directors Meeting and Family Child Care Conferences	10/31/2025
17	The Lead Agency does not ensure that background check fees do not exceed the actual costs for the processing and administration, as required by 98.43(f). (Plan Question 5.7.16) The Lead Agency does not conduct background checks when a provider is separated from employment for more than 180 consecutive days, as required by 98.43(d)(3)(iii). (Plan Question 5.7.17)	08/31/2028
18	Consult with WV CARES to determine background check fees Consult with Identigo to determine background check fees Develop Letters of Agreement for family child care facility, home, and informal/relative home providers requiring employees separated more than 180 consecutive days have background checks.	01/31/2025
19	Propose rule change within WV DoHS BFA chain of command and Legal team. Provide a public forum for proposed regulation change. Provide a public comment period for proposed regulation change. Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period. File approved rule with the state register and legislative rule-making committee within 90 days.	03/31/2025
20	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	06/30/2025

COMPREHENSIVE BACKGROUND CHECK:INTER-STATE

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct interstate criminal history background checks for all staff members (or prospective staff members) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.6a)
- The Lead Agency does not require and conduct interstate criminal history background checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.6c)
- The Lead Agency does not require and conduct interstate sex offender registry checks for all staff members (or prospective staff members) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.7a)
- The Lead Agency does not require and conduct interstate sex offender registry checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.7c)
- The Lead Agency does not require and conduct interstate CAN registry checks for all staff members (or prospective staff members) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(iii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.8a)
- The Lead Agency does not require and conduct the interstate CAN registry checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(iii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.8c)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require and conduct interstate criminal history background checks for all staff members (or prospective staff members) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.6a)	08/31/2028
2	Revised 78CSR1 child care centers, 78CSR21 out of school time centers, 78CSR18 family child	04/28/2023

	care facilities, 78CSR19 family child care homes, and 78CSR20 informal/relative family homes.	
3	Explore how other states conduct background checks Consult with Legal Develop policies/procedures on Plan of Action Approvals from Leadership Update Background Check Guide Present information at 2025 All State Director Meeting and Family Child Care Conferences	10/31/2025
4	Obtain legislative approval to add a definition to 78CSR1, 78CSR18, 78CSR19, 78CSR20, and 78CSR21 to include a definition for Rap Back program at 2028 regulations sunset. Provide a public forum for proposed regulation change. Provide a public comment period for proposed regulation change. Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period. File approved rule with the state register and legislative rule-making committee within 90 days Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
5	The Lead Agency does not require and conduct interstate criminal history background checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.6c) The Lead Agency does not require and conduct interstate sex offender registry checks for all staff members (or prospective staff members) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.7a) The Lead Agency does not require and conduct interstate sex offender registry checks for all individuals age 18 or older who reside in a family	10/31/2025

	child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.7c) The Lead Agency does not require and conduct the interstate CAN registry checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(iii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.8c)	
6	Revised 78CSR1 child care centers, 78CSR21 out of school time centers, 78CSR18 family child care facilities, 78CSR19 family child care homes, and 78CSR20 informal/relative family homes.	04/28/2023
7	Explore how other states conduct background checks Consult with Legal Develop policies/procedures on Plan of Action Approvals from Leadership Update Background Check Guide Present information at 2025 All State Directors Meeting and Family Child Care Conferences	10/31/2025

COMPREHENSIVE BACKGROUND CHECK:PRE-SERVICE CHECK REQUIREMENTS (PROVISIONAL HIRE)

Reason(s) for non-compliance:

- The Lead Agency does not require a qualifying result from an FBI criminal background check or in-state criminal background check with fingerprints before a prospective staff member begins work, as required by 98.43(d)(4). (Plan Questions 5.7.12a and 5.7.12b)
- The Lead Agency allows the prospective staff member to work unsupervised before receiving a qualifying result on the comprehensive background check requirements, as required by 98.43(d)(4). (Plan Question 5.7.12i)

Overall Target Completion Date: 08/31/2028

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require a qualifying result from an FBI criminal background check or in-state criminal background check with fingerprints before a prospective staff member begins work, as required by 98.43(d)(4). (Plan Questions 5.7.12a and 5.7.12b)	10/31/2025
2	Revised 78CSR1 child care centers, 78CSR21 out of school time centers, 78CSR18 family child care facilities, 78CSR19 family child care homes, and 78CSR20 informal/relative family homes.	04/28/2023
3	Explore how other states conduct background checks Consult with Legal Develop policies/procedures on Plan of Action	06/30/2025
4	Approvals from Leadership Update Background Check Guide	09/30/2025
5	Present information at 2025 All State Directors Meeting and Family Child Care Conferences	10/31/2025
6	The Lead Agency allows the prospective staff member to work unsupervised before receiving a qualifying result on the comprehensive background check requirements, as required by 98.43(d)(4). (Plan Question 5.7.12i)	08/31/2028
7	Propose rule change within WV DoHS BFA chain of command and Legal team to obtain approval to update 78 CSR 1, 18, 19, 20, 21 to include requirement that comprehensive background checks are required prior to working unsupervised.	04/30/2027
8	Provide a public forum for proposed regulation change. Provide a public comment period for proposed regulation change. Final WV DoHS BFA approval of proposed rule, including amendments due to public forum and public comment period. File approved rule with the state register and legislative rule-making committee within 90 days.	07/30/2027

9	Seek promulgation of proposed rule via Legislative approval. Final rule will go into effect August 2028	08/31/2028
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CONSUMER EDUCATION:WEBSITE AND RESOURCES FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not post the detailed report with the results of the market rate survey, as required by 98.45(f)(1). (Plan Question 4.2.3i)
- The Lead Agency's consumer education website does not ensure the widest possible access to services for families who speak language other than English, as required by 98.33(a). (Plan Question 9.2.1ii)
- The Lead Agency has not established a direct URL/website link for the process of licensing child care providers or conducting monitoring and inspections of child care providers, as required by 98.33(a)(1)(i). (Plan Questions 9.2.2i and 9.2.2ii)
- The Lead Agency does not share information about programs carried out under section 619 and Part C of the Individuals with Disabilities Education Act (IDEA) with parents, the general public, or child care providers, as required by 98.33(b)(1)(iii). (Plan Question 9.3.2)
- The Lead Agency does not provide a description of how a family or eligible child care provider can access resources and services to obtain developmental screening for CCDF children, information on the coordinated use of the Early Periodic Screening, Diagnosis, and Treatment program, developmental screening information to parents, or a description of how a family or eligible child care provider can access resources and services to obtain developmental screening as part of the intake process, and to providers through training and education, as required by 98.33(c). (Plan Questions 9.4.1)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not post the detailed report with the results of the market rate survey, as required by 98.45(f)(1). (Plan Question 4.2.3i)	04/30/2024
2	Posted Market Rate Survey information.	04/30/2024
3	The Lead Agency's consumer education website does not ensure the widest possible access to services for families who speak a language other	06/30/2025

	than English, as required by 98.33(a). (Plan Question 9.2.1ii)	
4	Consult with WV Interactive to establish steps required to include a translator tab at the top of the website page. Update website to include translator tab for web pages.	06/30/2025
5	The Lead Agency has not established a direct URL/website link for the process of licensing child care providers or conducting monitoring and inspections of child care providers, as required by 98.33(a)(1)(i). (Plan Questions 9.2.2i and 9.2.2ii)	09/30/2025
6	Consult with WV Interactive to add a website link to applicable consumer education website pages for the process of licensing and registering providers and how monitoring and inspection occurs. Draft language for consumer education website to ensure both the process of licensing and registering as child care providers and how monitoring and inspections occur is included and reader friendly.	06/30/2025
7	Go live for revisions to consumer education website for the process of licensing and registration and the monitoring and inspection process.	09/30/2025
8	The Lead Agency does not share information about programs carried out under section 619 and Part C of the Individuals with Disabilities Education Act (IDEA) with parents, the general public, or child care providers, as required by 98.33(b)(1)(iii). (Plan Question 9.3.2)	09/30/2025
9	Explore other states child care websites to determine language used to share 619 and Part C Draft language for WV DoHS ECE website to include information about programs carried out under section 619 and Part C of IDEA Seek WV DoHS Leadership approval for language drafted	08/29/2025

10	Update ECE website to include new language/information	09/30/2025
11	The Lead Agency does not provide a description of how a family or eligible child care provider can access resources and services to obtain developmental screening for CCDF children, information on the coordinated use of the Early Periodic Screening, Diagnosis, and Treatment program, developmental screening information to parents, or a description of how a family or eligible child care provider can access resources and services to obtain developmental screening as part of the intake process, and to providers through training and education, as required by 98.33(c). (Plan Questions 9.4.1)	09/30/2025
12	Consult with other early care and education entities throughout the state to determine resources and information that can be included in the updated ☐Resources☐ section of the website that will highlight developmental screening resources, EPSDT use, developmental screening information for parents and a description on how families can access these resources and services with links for contact information for these resources. Consult with other early care and education entities throughout the state to determine professional development and education opportunities to become skilled at using various early childhood developmental screening tools.	07/31/2025
13	Revise website to include both resources for parents and professional development/educational opportunities for providers.	09/30/2025